



2025:AHC:190047-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 36817 of 2025

Atiya Begum

.....Petitioner(s)

Versus

Chairman U.P Power Corporation Shakti Bhawan
14 Ashok Marg Lucknow And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Akhilesh Kumar Tripathi
Counsel for Respondent(s)	:	Chetan Chatterjee

Court No. - 1

HON'BLE NEERAJ TIWARI, J.
HON'BLE VIVEK KUMAR SINGH, J.

1. Heard learned counsel for the petitioner and Sri Chetan Chatterjee, learned standing counsel for the respondents.

2. Learned counsel for the petitioner prays for and is permitted to implead Executive Engineer, Distribution Division-II, Ballia, Purvanhal Vidyut Vitaran Nigam Ltd. as respondent No. 3 during the course of the day.

3. Present petition has been filed seeking following relief:-

"A). Issue a writ, order or direction in the nature of mandamus directing to the respondent no. 2 entered the name of the petitioner on the place of her husband namely Late Sakil Ahmad in the electricity record.

B). A writ order or direction in the nature of mandamus directing to the respondent no.2 to decide the application of the petitioner within short span of time."

4. At the very outset, Sri Chetan Chatterjee, learned standing counsel for the respondents submitted that there is provision of mutation of claim under Clause 4.44 of The Electricity Supply Code, 2005(hereinafter, referred to as, 'Code, 2005') and for that, there is proforma form i.e. Annexure-4.11 of Code, 2005. He next submitted that in case petitioner moves application in accordance with Clause 4.44 of Code, 2005, the same shall be considered and decided at the earliest.

5. Learned counsel for the petitioner submitted that he would move the

application in accordance with Clause 4.44 of Code, 2005 within two weeks. He lastly submitted that a direction may be issued to respondent No. 3 to decide the application within stipulated time.

6. In view of the facts and circumstances of the case, the writ petition is **disposed of** with liberty to petitioner to move fresh application under Clause 4.44 of Code, 2005 along with certified copy of this order before respondent No. 3 within two weeks from today. In case any such application is filed, respondent No. 2 is directed to decide the same in accordance with law maximum within a period of four weeks thereafter.

7. It is made clear that this Court has not adjudicated the case on merits. It is upon respondent No. 2 to pass order after considering the relevant Rules as well as facts of the case.

(Vivek Kumar Singh,J.) (Neeraj Tiwari,J.)

October 29, 2025

ADY